IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

MEMO OF PARTIES

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Plaintiff / Petitioner / Complainant

Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

Next date of hearing: [DATE]

APPLICATION UNDER ORDER XXXIX RULES 1 AND 2 READ WITH SECTION 151 CPC FOR THE GRANT OF A TEMPORARY INJUNCTION DURING THE PENDENCY OF THE SUIT

Respectfully showeth:

1. That the plaintiff / applicant has filed the accompanying suit for [RELIEF], the contents of which may be read as part of this application.
2. That the applicant has a prima facie case, as [STATE BRIEFLY — title, possession, documents].
3. That the balance of convenience lies in favour of the applicant, as [REASON].
4. That the applicant will suffer irreparable loss and injury, which cannot be compensated in money, if the defendant is not restrained from [ACT] during the pendency of the suit.
5. That there is urgency, as [the defendant is likely to __ at any time], and the object of granting the injunction would be defeated by delay. [Ground for ex parte ad interim relief, if sought.]
6. That the right requiring protection is [identified right], supported at this stage by [document and facts]. The threatened act is [specific act, date and evidence], concerning [clearly identified property or subject].

7. That the prima facie issue arises from [specific disputed fact or legal right], and the applicant's existing position on the filing date is [possession or other factual position].

8. That withholding protection would cause [identified imminent harm] which damages would not adequately repair because [reason]. The opposing party's likely hardship from the proposed restraint is [assessment].

9. That the balance of convenience favours [narrow restraint] because [comparative consequences]. The order sought preserves [subject] and does not effectively grant unsupported final relief.

10. That [if ex parte relief is sought] notice would defeat the object because [specific imminent event]; the applicant undertakes prompt compliance with Order XXXIX Rule 3, including supply of papers and the prescribed affidavit of compliance.

11. That material adverse facts and earlier interim orders are [full particulars]. The proposed restraint is [exact terms and duration], with a return date and service arrangement.

12. That [OPTIONAL: retain only after verifying the cited rule and these facts] the prima facie right [evidence], injury not adequately reparable by damages [facts], and comparative hardship [analysis] satisfy the distinct considerations in Dalpat Kumar. The narrow restraint sought is [terms] and the contrary material is [disclosure and answer].

PRAYER

It is, therefore, respectfully prayed that the defendant, his agents and servants may kindly be restrained by a temporary injunction from [ACT] in respect of [SUIT PROPERTY / SUBJECT MATTER] during the pendency of the suit, and an ex parte ad interim injunction may be granted till the disposal of this application.

Place: [PLACE] Date: [DATE]

APPLICANT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Applicant

IN THE COURT OF [DESIGNATION OF THE PRESIDING OFFICER], [PLACE]

[CASE TYPE] No. ____ of 20__

[NAME OF PLAINTIFF / PETITIONER / COMPLAINANT], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Plaintiff / Petitioner / Complainant

Versus

[NAME OF DEFENDANT / RESPONDENT / ACCUSED], aged about [__] years, [son / daughter / wife of] [PARENTAGE], resident of [COMPLETE ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER], Email [IF AVAILABLE].

… Defendant / Respondent / Accused

AFFIDAVIT

Affidavit of [NAME OF DEPONENT], [S/o / D/o / W/o] [NAME], aged about [__] years, resident of [FULL ADDRESS WITH PIN CODE], Aadhaar No. [IF LAWFULLY REQUIRED], Mobile No. [NUMBER].

I, the above-named deponent, do hereby solemnly affirm and declare as under:

1. That I am competent to swear this affidavit. The accompanying [suit / petition / application] was drafted by counsel on my instructions, read over and explained to me in [LANGUAGE], and is adopted as part of this affidavit. Its facts are true to my knowledge or identified records; legal submissions rest on advice believed true.
2. That [no same or similar proceeding on this cause has been filed / all prior and pending proceedings, outcomes and orders are disclosed here: ___]. Nothing material is concealed.

DEPONENT

VERIFICATION

Verified at [PLACE] on [DATE] that paragraphs 1 and 2 above are true and correct to my knowledge and identified records, with legal submissions based on advice believed true. Nothing material has been concealed.

DEPONENT

Gagandeep Goel, Adv. (Enrl. No. P/1983/2007)
Gagandeep Goel & Associates | Master Legal Work
(M) 987 220 6969, (E) masterlegalwork@gmail.com
Advocate for the Applicant

PREPARATION AND JUDGMENT APPLICATION

MODEL FOR GENERAL REFERENCE ONLY. NOT LEGAL ADVICE. These preparation notes are not part of the document to be signed or filed.

Model format for general reference only. Not legal advice. Adapt to the facts and the court's current rules. Source: masterlegalwork.com

Layout revised 17 October 2026 in the MLW house style: Legal paper, Arial 13, justified text and separate preparation notes. This is a model, not a prescribed court form. Check the current registry and e-filing requirements; mandatory court directions prevail. Use only identity particulars lawfully required by the forum and apply any required masking.

Updated 11 October 2026. Complete every material fact, retain only supported alternatives, and renumber before filing. These notes support professional adaptation; they do not supply missing evidence or guarantee relief.

Filing and relief checks. Plead all three requirements with evidence. For an ex parte order give real reasons why notice would defeat the object; comply with Rule 3. An interim mandatory order requires its own stricter analysis.

Fact-specific authority. Dalpat Kumar v. Prahlad Singh, (1992) 1 SCC 719; 16 December 1991, paras 4–5. Connect the prima facie right, uncompensable threatened injury and comparative hardship to the records. A prima facie case alone does not establish entitlement to an injunction. Read the judgment

Source: https://indiankanoon.org/doc/49480/

Before relying on any authority, compare the material facts, procedural stage, statutory version and precise relief; check subsequent treatment and applicable local practice. Keep the authority note separate from the signed pleading. For criminal procedure, determine Section 531 BNSS savings rather than select the code solely from the alleged offence date.

Note: If an ex parte injunction is granted, comply with Order XXXIX Rule 3 CPC (deliver or send the papers to the opposite party as directed).

Note: To be sworn before an Oath Commissioner / Notary Public and stamped as required by the applicable rules.